

Council Meeting
November 12, 2020
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The Claremont City Council held a meeting on Thursday, November 12, 2020, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

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Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Abigail Kier – home, alone

Assistant Mayor Allen Damren – home, alone

Mayor Charlene Lovett – home, alone

At-Large Councilor Debora Matteau – home, alone

At-Large Councilor Nicholas Koloski – work, alone

Ward II Councilor James Contois – home, alone

Ward III Councilor Jonathan Stone – Council Chambers, alone

Absent:

At-Large Councilor Erica Sweetser

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Councilors agreed to remove Proposed Council Rule Change (Citizen Letters) from this agenda and to move it to the December 9th agenda.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Kier to accept the minutes of the October 7, 2020, City Council meeting.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

A motion was made by Councilor Matteau and seconded by Councilor Stone to accept the minutes of the October 14, 2020, City Council meeting.

Roll call vote:

O'Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0, with 1 abstain.

A motion was made by Councilor Kier and seconded by Assistant Mayor Damren to accept the minutes of the October 21, 2020, City Council meeting.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to accept the minutes of the October 28, 2020, City Council meeting as amended.

Mayor Lovett asked that in the fourth paragraph that the lead grant figure of \$25,511 be added.

Mayor Lovett asked that in the fifth paragraph it currently reads, “It states that Mr. Nelson said the lead abatement is smaller than originally projected.” It should read, “Mr. Nelson stated that there was some confusion. Councilor Sweetser thought the original number was just for lead abatement. The actual lead abatement number is significantly smaller than the rehabilitation number.”

Roll call vote:
O’Hearne - yes
Kier - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

MAYOR’S NOTES

- Thank you to all candidates, City officials, and the 81% of voters who turned out for the November 3rd election
- Yesterday was Veterans Day. She thanked the American Legion, the Sons of the American Legion and the American Legion Auxiliary for putting on the event
- She highlighted some of the items from the department reports including the Fire Department’s distribution of free smoke alarms, and Parks & Recreation’s holiday lighting of Broad Street Park on November 27th
- It is important to recognize how hard people on staff and in the public are working in spite of the COVID-19 pandemic

CITY MANAGER’S REPORT

- **Elections** – Thanked Gwen Melcher, City Clerk, her staff in Central Collections, and all the volunteers at the polls for all their work to ensure a safe and well-run election. 1188 absentee ballots were received. There were 4712 voters on Election Day. Thanked the Claremont Police Department for keeping an officer at each polling location to ensure

the safety of all voters, poll workers, and to uphold the voting rules established by the State of New Hampshire. Thanked the voters (81% voter turnout).

- **Pleasant Street Update** – Since the Pleasant Street bond was approved by the City Council, McFarland Johnson and the Planning and Development Department hosted a public meeting to gather ideas for the finishes and details of the Pleasant Street Project. They have also been working on developing plans, and working with some building owners on right-of-way issues and parking. As we work on these issues, McFarland Johnson is working on putting together the finished engineering plans. Once the plans are further along, the City will host another meeting to present their design, before releasing any bid documents.
- **Opera House Grant** - Thanked the Claremont Opera House (COH), and especially Louanne Lewit, for the work on the Moose Grant application. Because of Ms. Lewit's hard work, the COH received a \$20,000 conservation grant from the NH State Council on the Arts to go toward repairing the large stained-glass windows in the Opera House. This money will not repair all the windows, but the grant can be applied for again in the future, until the windows are all done. The City can also work with the COH to find other funding sources to help preserve the Opera House and City Hall Complex. Thanked the COH and Louanne Lewit for their continued partnership with the City, and for including William Willette from City Staff in the planning portion of this grant.
- **Police Staffing** - Staffing continues to be a focus for the Claremont Police administration. Currently, there are three patrol officer positions open. Testing will start in November. The ACERT Coordinator recruitment process has also started. We anticipate hiring the person for this position by early December. A conditional offer of employment was issued to the prospective applicant for the Deputy Chief position. We hope to have an announcement soon on this position. The last open position we have at Claremont Police Department is the Administrative Assistant. This position is an assistant to the Prosecutor and the Claremont Police Administration. This process is also ongoing, and we hope that someone is hired for this position by late November.
- **Lafayette Trail**- The City's application for a historic marker commemorating General Lafayette's visit to the City of Claremont during his 1824-1825 Triumphant Tour of America has been approved by both The Lafayette Trail Inc, and the William G. Pomeroy Foundation. The marker and mounting post have been ordered, and we expect to receive the marker in early December.
- **COVID-19 Update** – As of the time this report was written, the State of New Hampshire is seeing an increase in positive COVID-19 cases, and we have seen increases here in Sullivan County as well. Sullivan County currently has 25 active cases of infection, with 2 active cases in Claremont at this time. In order to maintain these low numbers in Claremont, we must increase our efforts to control the spread of the virus. Many of the Towns around us have active cases of COVID-19, and Claremont residents have interactions with residents of these towns on a daily basis. If we continue to keep

good hand hygiene and sanitization efforts, while maintaining social distancing, and wearing masks when in public, we can hopefully continue to keep our numbers low and protect the health of the citizens of Claremont.

COVID-19 Update

Mr. Morris said the City has almost doubled the number of cases between Monday and today. It is important to wear masks, maintain social distance, and wash hands often to help slow down the spread of the disease.

Mr. Morris said today he had issued a mask wearing mandate in all City facilities in order to protect Staff, keep facilities open, and continue providing City services. If the numbers continue to increase, we may have to move back to taking reservations as we did earlier this year. Reminder that Valley Regional Hospital is a testing site.

Mr. Morris said that shoring work continues at 139/147 Main Street. He will give an update as it gets closer regarding the demolition and street closure.

APPOINTMENT TO BOARDS AND COMMITTEES

Fiske Free Library Board of Trustees

At 6:57 p.m. Assistant Mayor Damren stepped away.

A motion was made by Councilor Koloski and seconded by Councilor Contois to re-appoint Sharon Wood to seat A-2 of the Fiske Free Library Board of Trustees.

Roll call vote:

O'Hearne - yes

Kier - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Proposed Council Rule Change (Citizen Letters)

Moved to December 9th agenda.

Compensation Study Discussion

At 6:49 p.m. Assistant Mayor Damren returned.

Mr. Morris said there are a lot of factors that have to be considered in order to bring forward a plan. There is money in this budget in order to implement some raises. He would like to put forward some raises and to encumber the rest of the money not used this year. The Personnel Advisory Board (PAB) is scheduled to meet November 17th to discuss the Compensation Study. There are 55 full-time positions in the Merit Plan, along with many part-time positions. Only 9 of the 55 full-time positions are Directors. Only one Director, Finance Director Mary Walter, has maxed out her salary. There are some long-term employees that are being paid less than newer employees. Those newer employees were hired at the higher range, in an effort to recruit personnel to come into the City. The pay scales will be discussed with the PAB.

Councilor Contois expressed concern that the Study compares Claremont to other cities and not local jobs. He said he cannot support it.

Councilor Koloski said he is a City employee [Call Firefighter] and that he would abstain from voting.

Councilor Kier is in favor of the Study moving forward.

Councilor O'Hearne was concerned that Merit Plan employees are paying 7% for health insurance and other employees are paying more. Mr. Morris said 26 employees are paying 7% and it is being proposed that they move to 10%. Most of the unions are at 10%. New employees to the City are paying 20%.

Mr. Morris said he wants to look at City employees as a whole. This Compensation Study is for all employees.

Councilor Matteau agreed with a lot of Councilor Contois' comments. She said in the Study that pay doesn't seem to be a big issue with current employees. She would like to see something proposed for next year's budget. Until then, she is not in favor of moving forward. Mr. Morris said that because the City was in the middle of a Compensation Study, that employees felt pay was being addressed. He has heard concerns about pay throughout the City of Claremont. Councilor Matteau would like to see benefit sheets before moving forward. Mr. Morris said he is working on those and they will be sent out to the Council soon.

Mr. Morris said the City's ratio for insurance is higher than some communities. There has been talk of introducing a high deductible plan in June or July.

Mr. Damren reminded everyone that the Police Department has lost several officers to Lebanon and today is struggling to hire three. The Council needs to look critically at the City Manager's proposal. He is in favor of utilizing the Plan, acknowledging the need to go slowly in its implementation.

There was a consensus of the Council to move this to the PAB for its November 17th meeting.

There was a consensus of the Council that the PAB's recommendations come back to the Council at its December 9th meeting, if possible. Mr. Morris said it is possible to bring back the recommendations, but not the Merit Plan changes at that time.

NEW BUSINESS

Use of City Property at 297-299 Washington Street

The City of Claremont has had issues for years with people driving and parking on the Rail Trail in front of Maurice's Auto – Truck & Trailer, owned by Mike and Tracy Hurd (Sheazach Properties LLC). The City is working with Mr. Hurd to maintain access to his business while upgrading and protecting the Rail Trail.

The City has been working with the State, local partners, and Mr. Hurd in order complete the Rail Trail within the rules established when the City was granted the Rail Trail property, and in an effort to make sure Mr. Hurd is still able to operate his business. Through this process, the City has come up with a licensing option for Sheazach Properties LLC for the use of the City-owned property from the property line in front of parcels 133-57, 133-58, and 133-59 up to within five (5) feet of the Rail Trail except for the following provisions:

- Licensee shall not store equipment or materials on the property other than wheeled trailers or vehicles that are for sale on City-owned property in front of parcel 133-57.
- Licensee shall not store equipment or materials on the City-owned property in front of parcels 133-58 and 133-59, but will be allowed to use the City-owned property for short-term parking of customer and employee vehicles.

Several of the City's Departments have been involved with this process. The Assessing Department created a "what if" parcel for this .17 acre of land. If the license is approved, Sheazach Properties LLC will pay the property taxes associated with this section of land.

Mr. Morris gave some background. He said this proposal has been okayed by the state. He said the City has licensed other pieces of City-owned property in exchange for payment of taxes.

Mark Brislin, Parks and Recreation Director, said that the project to delineate between the Rail Trail and the abutting properties (split rail fence and improvements to the surface) is about 80%

done. He said on some sections, there will be removable bollards to keep vehicles off the Trail. The grant funding for this project covers as far as O'Reilly's. Future grants, if received, could cover further.

Mike Hurd, Maurice's, expressed concern about access to two driveways and that installing bollards would create a hazard. He said the buildings have been in place since 1968. He asked that the money collected for this lease be used to benefit something other than the General Fund, i.e. Special Olympics.

Mr. Brislin said the City's right-of-way is 30 feet from the center of the Rail Trail.

Mr. Brislin said the Parks and Recreation Commission has recommended this plan.

There was some discussion about a 10-13 foot section between the driveways, moving the power pole (City would not pay for this), and installing signage to facilitate safer parking.

There was a discussion about a site visit, however, with the current pandemic, it was determined that individual visits would be more prudent. Councilors agreed to move forward with the licensing agreement and to add it to the December 9th Council agenda.

The value of the land is about \$27,000 and the taxes would be about \$1,087.

Mr. Hurd said he is willing to walk the Trail with any interested Councilor.

Website Presentation

Mr. Morris gave a brief introduction. Rebecca Vinduska, Business Development Specialist, introduced Jim Tormey, Jesse James Creative. Mr. Tormey gave an overview of the City's new website, explaining some of the features Councilors had expressed interest in. If Councilors have content they want added to the website, they should forward it to the City Manager.

Mr. Morris said Ms. Vinduska has worked very hard on this, and he thanked her for all of her work.

Funds Transfer

Mary Walter, Finance Director, said that property and liability went up, and worker's comp went down, so transfers are needed.

A motion was made by Councilor Kier and seconded by Assistant Mayor that the Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2021 City budget.

Property / Liability Insurance				
Transfer From		Transfer To		
01-416-135-0000	\$ 1,710.00	01-417-630-0022	\$ 1,710.00	
01-420-135-0000	\$ 40.00	01-420-103-0000	\$ 40.00	
01-421-135-0000	\$ 4,933.00	01-421-630-0040	\$ 4,933.00	
01-422-135-0000	\$ 6,215.00	01-417-630-0030	\$ 6,215.00	
01-422-135-0000	\$ 1,243.00	01-417-630-0050	\$ 1,243.00	
01-422-135-0000	\$ 1,400.00	01-417-630-0055	\$ 1,400.00	
01-441-135-0000	\$ 1,631.39	01-417-630-0010	\$ 1,631.39	
01-441-135-0000	\$ 4,816.50	01-417-630-0020	\$ 4,816.50	
01-450-135-0000	\$ 13.71	01-450-630-0010	\$ 13.71	
01-471-135-0000	\$ 280.00	01-417-630-0032	\$ 280.00	
01-471-135-0000	\$ 302.00	01-420-630-0040	\$ 302.00	
90-490-135-0000	\$ 1,656.52	90-490-201-0000	\$ 1,656.52	
92-492-135-0000	\$ 1,317.47	92-492-201-0000	\$ 1,317.47	
Totals:	\$ 25,558.59		\$ 25,558.59	
Note: To cover 10% increase in property & liability rates				

Roll call vote:
O’Hearne - yes
Kier - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

Accept and Expend Center for Tech & Civic Life Grant – Public Hearing

Ms. Walter said this is a grant to help offset additional election costs.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council, after a public hearing duly noticed, hereby moves, under RSA 31:95B, to accept a check in the amount of \$6,027.00 from the Center for Tech and Civic Life, for the public purpose of planning and operationalizing safe and secure election administration in the City of Claremont in 2020.

Mayor Lovett opened the public hearing. No one spoke. He closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Current Status and Options in Response to an Increase in COVID-19 Numbers

A sample ordinance was presented to the Council by Councilors Koloski and Kier for conversation.

Mayor Lovett said with the increasing COVID-19 numbers, she has received calls about wearing masks. If the majority of the Council wants to mandate wearing masks, there would have to be an ordinance or resolution. No action is needed tonight. She mentioned that if the Council wanted to put an emergency provision in the Charter, there would have to be an amendment to the Charter.

Councilors discussed their points of view regarding the mask mandate. Both, Mr. Morris and Police Chief Mark Chase expressed concern about using Police Department resources to issue tickets, and the follow-up required.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to table this to December 9th.

Roll call vote:

O’Hearne - yes

Kier - no

Damren - yes

Matteau - no

Koloski - no

Contois - no

Stone - yes

Lovett - no

Motion failed 3-5.

A motion was made by Councilor Matteau and seconded by Councilor Kier to put the first reading of a proposed ordinance to mandate wearing of masks on the December 9 agenda.

Councilors discussed the process for the ordinance.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to move the question.

Roll call vote:

O’Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - no

Stone - yes

Lovett - yes

Motion carried 6-2.

Councilor Matteau withdrew her motion and Councilor Kier withdrew her second.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone that the Council refer the draft ordinance, as submitted to Councilors from Councilor Kier, to the Policy Committee for review and simultaneously the City Manager for Staff review and legal review for presentation to the Council on December 9.

Councilors discussed having this ready for the December 9th Council meeting.

Assistant Mayor Damren amended the motion “by December 9th, if possible.” Seconded by Councilor Kier.

The motion now reads: **“A motion was made by Assistant Mayor Damren and seconded by Councilor Stone that the Council refer the draft ordinance, as submitted to Councilors from Councilor Kier, to the Policy Committee for review and simultaneously the City Manager for Staff review and legal review for presentation to the Council by December 9th, if possible.”**

Roll call vote:

O’Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

None

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 10:12 p.m., a motion was made by Councilor Matteau and seconded by Councilor O'Hearne to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council